

Nebula Research Platform

Terms of Use

These Terms of Use together with our [Privacy Policy](#) and our [form](#) form the basis of what we expect from you as a Nebula user and what you can expect from us as provider of the Nebula Research Platform.

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1. Definitions

Network Institute	Refers to the Network Institute, an administrative part of the Computer Science department, part of the Faculty of Sciences, part of the Vrije Universiteit, which may perform its obligations through its affiliates, directors, contractors, licensors, and/or employees.
Nebula Research Platform or Nebula	The online platform of the Network Institute of the Vrije Universiteit (VU) that allows users to store, share and run machine-learning models, datasets, knowledge bases and other research artefacts.
Service(s)	All products and services made available through the Nebula Research Platform. Including but not limited to open-source libraries, model hub, inference API, dashboards, SDKs, support, custom solutions, etc.
User	A natural person (at least 18 years of age) or legal entity (university, research group, non-profit organisation) that creates an account and uses the Services.
Nebula Group	A group of users that share a group identification in the User Database of Nebula.
Content	Any material uploaded by the user or obtained via the Service(s), including but not limited to code, data, models, documents, images, etc.
Model	Refers to a pre-trained machine learning model including algorithms and weights, which can be run to make predictions (inference).
Knowledge Base	Refers to a file storage where the User can store files to be used for our Service(s). Files are stored locally on the Nebula servers. Files are private unless otherwise set by the User. Files will remain in the storage until either the User deletes the files or the Nebula administrator deletes the files after removal of the associated account.

Repository	Refers to a data structure which contains all of the project files and the entire revision history. A Repository will always be private.
Account	Is the account that the User requests and we will create on the Nebula web site to access or use our Service(s). It must be secured by a strong password.
Agreement or Terms	Refer to all of the terms and conditions that apply between us. They include these Terms, any Supplemental Terms, the Privacy Policy, the Fair Use Policy, notices and policies available at https://nebula.cs.vu.nl/welcome , and/or any other binding document that we provide and/or that you sign, including but not limited to an Order Form or a Scope of Work (project) agreement.
Order Form	Refers to the document shared by the Network Institute to the customer describing the quantity of services ordered by the customer and the fees payable for such services. Additional Order Forms may be negotiated between and executed by the Parties, and shall be incorporated into the Agreement.
Inference Providers	Refers to hosted services available on https://nebula.cs.vu.nl that let the User run inference via the OpenWebUI interface or via an application programming interface (API) on machine learning models publicly or privately hosted on Nebula's model hub.
Effective date	Refers to the last date of signature of the Agreement, or any other binding document and/or the earlier of (i) the date you click "I agree" or (ii) first use of a Service.
Open-Source License	The specific licence under which a component is offered (e.g., MIT, Apache 2.0, CC-BY-4.0).

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2. Introduction

- By accessing, using or purchasing the Services, you consent to all of these Terms and policies. So, if you do not agree with any of those, please do not access, use or purchase the Services.
- You must use our Services in strict compliance with these Terms, any Supplemental Terms for each Service, all of our policies available on our Website, and all applicable laws or regulations in the relevant jurisdiction(s).
- We may at any time modify, suspend, or discontinue, temporarily or permanently, the Services (or any part thereof) with or without notice. You agree that we will not be

liable to you or to any third party for any modification, suspension or discontinuance of the Services.

- By creating an account or using the Services, the user confirms that they have read, understood and agree to these Terms of Use.

3. What is Nebula?

We provide the following Services in the field of machine learning.:

- The Nebula Research Platform where you can access models (run inference), create Knowledge Bases, store custom models (prompts and Knowledge Bases).
- Open-Source libraries: including transformers, datasets and tokenizers. For a list of licences attached to these, see our [Supplemental Terms](#).
- Inference Providers Service: where you can run inference via application programming interface (API) on machine learning models publicly or privately hosted on Nebula
- Generic support on the correct usage of Nebula including advice on how to use Nebula.
- Custom solution, where we provide custom tuned models based on your needs recorded in a special project agreement signed by both you and us

4. What Nebula is NOT?

To avoid misunderstanding we also want to tell you what Nebula is not and how it should not be used:

- It only offers Open-Source models. The latest commercial models are not and cannot be made available.
- It is not possible to (re)training or fine tune any of the models. The computational costs for this are enormous.
- It is not allowed to use sensitive data in terms of the AVG, GDPR or AI Act rules without prior DPIA. If you doubt if your data is sensitive contact us so we can look at it together. You can also look at our [Quick Guide](#) on "Do I need a DPIA?" or contact your Privacy Champion (<https://vu.nl/en/employee/policy-and-organisation/privacy-champions-information>) at your faculty. If your data is sensitive and you still would like to use Nebula, please contact us so we can see if there is a solution that will work for you and us.
- Commercial use is not permitted.
- It is not allowed to generate illegal, hateful or discriminatory content.
- It is not allowed to circumvent technical restrictions or rate limits
- It is not allowed to compromise the security or integrity of the platform.

5. Your Account

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Assigned to r.apsan@vu.nl

Commented [4]: I think it's better if we mention the actual services that the user comes in contact with, i.e., Open WebUI, LiteLLM, Ollama and vLLM, rather than the underlying technologies of these services (transformers, datasets, tokenizers, etc.), what do you think?

Commented [5]: @r.apsan@vu.nl At this location it's easier to use generic terms. Saves a lot of editing later on.
I suggest we create a Supplementary Terms of Use (https://docs.google.com/document/d/1sdn1tyJ6xEJxdtSuH3i4EfmTme_FV_1df8tV6FHmTnc/edit?usp=sharing) in which we drop these things so we only need to change that doc!

Commented [6]: So, my initial question remains :-) Using generic terms what do we offer?

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- web interface (Open WebUI)
- LLM proxy (LiteLLM)
- LLM inference (vLLM, Ollama and SURF AI Hub)

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In order to create an Account for yourself on our Platform, you must be a natural person of at least age 18, or an academic institute or part thereof, or a non-profit organization.

When you request an Account using our Access Request Form

(<https://forms.gle/oYbGvhQ9rendeTyy8>) , we are going to ask you to provide us with some basic information, such as your email address, full name, department and faculty, and other optional information such as the intended use of Nebula, the duration you need access, if you are going to use sensitive data. All information must be accurate and valid.

We check your data and decide to approve or decline your request for access to Nebula.

If we approve your request you will receive information containing your credentials and a link to the Nebula Welcome Page where you will find basic information on using Nebula and links to this and other Policy documents.

If we decline your request we will contact you and explain why we declined your request. We will always discuss options with you so you might still be eligible to access Nebula.

Security is very important to us, and we need every member of our community to cooperate. You are responsible for maintaining the confidentiality and security of your password necessary for accessing your Account and the Services. You may not disclose your password to any third party, and you are solely responsible for any action taken with your Account. You must notify us immediately of any actual or suspected breach of security on your Account, loss or compromise of password, or unauthorized use of your Account.

You are responsible for all activities under your account.

6. Your Data

You are solely responsible for the Content you use, upload, display or otherwise make available on our Platform, and for any other action or omission that results from your use of the Services (including our Content or other user's Content), or the use by a person or an entity that you have authorized under your Account.

You represent and warrant that you have ownership, control, and responsibility for the Content you post or otherwise make available on Nebula, or otherwise have the right to do so. Your Content must not be misleading or unlawful, and must not violate any of these Terms, applicable law and regulation, or infringe or misappropriate any rights of any person or entity. We may remove your Content at any time, at our sole discretion, if we have a concern about your Content.

You own the Content you create! We will not sell your Content, nor will we use it in any other way.

Your saved Custom Models and Knowledge Bases are private by default. Only you and the Platform's administrators have access to them. We will use reasonable and appropriate measures designed to keep your Content confidential, and protected from any unauthorized access or disclosure. However, we may access or share your private information pursuant to the terms set forth in our [Privacy Policy](#).

In some cases you can decide to give your Nebula Group access so other users can view this data, and therefore:

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- If you decide to set your Custom Models and/or Knowledge Bases public to a your user group, you grant each User in that group, irrevocable, royalty-free, non-exclusive license to use, display, publish, reproduce, distribute, and make derivative works of your Content through our Services and functionalities;

Any Content you download, access or use from us or another User, is at your own risk and subject to these Terms and/or the terms accompanying such Content.

7. User obligations

You will not:

- use the Services in violation of law (including export-control and sanctions rules);
- generate or disseminate illegal, harmful or discriminatory content;
- attempt to reverse-engineer or subvert rate limits or technical restrictions;
- interfere with the security or integrity of the Services.
- Use our Services as stated in paragraph 4 of this document

8. AI model limitations

Outputs of Large Language Models may be inaccurate, biased or otherwise unsuitable for your purpose. Do not rely on them as the sole basis for critical decisions. You assume full responsibility for verifying results.

9. Intellectual property

We retain ownership of all of our intellectual property rights related to the Nebula Research Platform and the Services, including all improvements to the Services. All materials that we produce, including the Website, design, code, graphics, interfaces, trademarks, and logo shall remain our exclusive property. You may not alter, reproduce, republish, license any of our proprietary materials, unless we expressly give you a written permission to do so. All rights not expressly granted are reserved and retained by us.

Certain items provided with the Services may be subject to "open source" or "creative commons" or other similar licenses (collectively, "Open Source"). The Open Source license terms are not intended to be replaced or overridden by the license and other terms of these Terms; however, the limitations of liabilities, disclaimers, and this provision apply to any such Open Source. Nothing in these Terms limit your rights under, or grants you rights that supersede, the terms and conditions of any applicable Open Source license. If we (or you) make modifications to Open Source, and if the applicable Open Source requires that such modifications be made available, and we (or you) do not already publish such modifications via the applicable open source community, then modifications will be available on applicable websites.

For a list of Open Source items used in the Nebula Research Platform and their respective licenses, see our [Supplemental Terms](#).

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Supplemental Terms. Certain Services may be governed by specific intellectual property terms which are stated in the Supplemental Terms and/or in any other binding document signed between us, and which are fully incorporated into the Agreement between us.

10. Fees and payment

Our plans and fees payable for the use of the Services you decide to purchase are available at <https://nebula.cs.vu.nl/pricing>. You may decide to choose a custom plan, in which case the payable fees and payment terms will be subject to further discussions and mutual agreement with us, and will be specified in the applicable Services Agreement, Order Form or any other binding document signed between us.

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We reserve the right to adjust our pricing from time to time and at our sole discretion. In such an event, prices will remain fixed during the term of your initial subscription, and adjusted fees will be applicable only after the term of your new subscription.

11. Service availability and support

We do our utmost best to keep Nebula up-and-running 24/7, but please remember that its primary goal is to function as a research tool and that flexibility and functionality are our top priority. Planned maintenance will be announced at least 24 hours in advance where practicable. Support is provided via email (nebula.cs@vu.nl).

12. Confidentiality

During the Service Term, and thereafter, we expressly agree (i) to maintain the strict confidentiality of such Confidential Information, and to refrain from disclosing such Confidential Information to any third party, except as authorized by the original disclosing party in writing; (ii) to use such Confidential Information only for the purposes of performing its obligations or exercising its rights under this Agreement; and (iii) to use at least a reasonable standard of care in protecting the Confidential Information.

Confidential Information is and shall at all times remain the exclusive property of the disclosing Party.

Upon termination or expiration of the Agreement, we ask you to promptly destroy or return all Confidential Information, and we will do the same.

13. Limitation of liability

Neither of us (or any of our affiliates, subsidiaries, contractors, licensors, officers, directors, agents, or employees ("Related Parties")) will be liable for any indirect, incidental, consequential, punitive, special, or other similar damages, including loss of revenue, profits, data, benefits, or savings, whether or not due to the fault or negligence of the company or related parties, and regardless of whether either of us or our related parties have been advised of the possibility of such damages or losses.

Either Party's (and each Related Party's) aggregate liability to the other Party or any third party in any circumstance will not exceed the amount that you paid us during the 12-month period immediately preceding the last claim (or \$50 if relating to a free service). This limitation will not apply to (i) either party's liability from fraud, gross negligence, recklessness, or willful or criminal misconduct, (ii) your liability for infringement of our

intellectual property rights, (iii) your liability for breach of the confidentiality section, or (iv) amounts you owe us for the service made available as per your payment obligations.

The limitation does not apply to (i) personal injury or death, (ii) damages resulting from a GDPR breach, (iii) infringement of Nebula's intellectual-property rights, or (iv) statutory obligations that cannot be contractually limited.

Nothing limits liability that cannot legally be limited (e.g., fraud, death or personal injury caused by negligence).

14. Force Majeure

Neither party shall be liable for failure to perform obligations caused by events beyond its reasonable control (e.g., natural disasters, war, pandemics, large-scale cyber-attacks).

15. Changes to the Services

We may improve or modify the Services at any time.

Modifications that significantly change core functionality will be announced at least 30 days in advance and you will have to accept our Term of Use again when logging in.

16. Changes to these Terms

We may update these Terms at any time by posting a new version. Material changes will take effect 30 days after we notify you by email. Continued use after that period constitutes acceptance.

17. Term and termination

You may decide to cancel your Account whenever you want, at your sole discretion. Please notify us at nebula.cs@vu.nl to have your account cancelled.

Nebula may terminate an account immediately for (i) serious or repeated breach of these Terms, (ii) unlawful use, (iii) a risk to platform security, or (iv) a request from a competent authority.

If your free account has been inactive for 30 days your account will be suspended and you won't be able to log in. If you want to continue to use Nebula and your account has been suspended, please contact us at nebula.cs@vu.nl.

If your account has been inactive for 180 days we will delete your account, unless the user has previously requested a longer retention period in writing.

Upon cancellation of your Account, we will delete your information and Content of your own Repositories, whether public or private, within 60 days.

We also reserve the right to retain your information for legal or regulatory compliance, pursuant to standard archiving, recovery, and back-up processes and practices, and pursuant to our Privacy Policy.

For certain Services, the Service Term and causes for termination may be specified in the Supplemental Terms and/or in any other binding document signed between us, including but not limited to an Order Form, a Scope of Work, or a Master Service Agreement, which are fully incorporated into the Agreement between us.

18. Disclaimer of Warranties

We provide Services that you may or may not decide to access, use or purchase. In this regard, we make no warranties or representations about these Services.

In other words, except as expressly provided otherwise herein, and to the fullest extent permitted by law, the Services and Content are provided "as is" and "as available".

We disclaim all warranties or guarantees of any kind, express or implied, whether arising under any law or from any usage in trade, or otherwise, including but not limited to the implied warranties of merchantability, non-infringement, quiet enjoyment, fitness for a particular purpose, or otherwise.

We further disclaim all warranties or guarantees about the accuracy, reliability or benefits of any Services, artificial intelligence, Models or any other technology or Content, or that the Services or Content will meet your requirements, be secure, uninterrupted or available at any time or location, or error-free, viruses-free, or that any errors will be corrected, or otherwise.

You will be solely responsible for any damage resulting from your use of or access to the Services, your downloading of Content or data, or use of any other material provided by or through the Services.

19. Indemnity

You are solely and exclusively responsible for your use of the Services!

In this regard, you agree to indemnify, defend and hold harmless us and Related Parties from all claims, liability, and expenses, including attorney's fees, arising out of or in connection with your use of (or inability to use) the Services, including but not limited to your violation of these Terms, applicable law or regulation, any Content or data posted or used by you, or any other party's use of any Service with your credentials, unless arising directly from Hugging Face's fraud, gross negligence, recklessness, or willful or criminal misconduct, provided that we provide you with (i) a prompt written notice of the claim, demand, suit or proceeding, (ii) sole control of the defense and settlement of the claim, demand, suit or proceeding, and (iii) all reasonable assistance and cooperation in connection with the defense and settlement of the claim, at its own expense.

20. Governing law and venue

This Agreement and all disputes arising out of or in connection with it shall be governed exclusively by the laws of the Netherlands and the Amsterdam court of law.

If any provision of this Agreement is found to be null, void, or unenforceable, the validity of the remaining provisions shall not be affected. In such an event, the parties shall consult with one another to agree on a replacement provision that most closely reflects the purpose and intent of the original provision.